Program Name: Krispy Krunchy ORR 2016 **Program ID :** PRG-1048535

Operator: KRISPY KRUNCHY CHICKEN

Effective Dates: January 1, 2016 through December 31, 2016 **Price Type:** Rebate

We are pleased to confirm pricing information for orders placed between January 1, 2016 and December 31, 2016 for the below named operators. During this time period, orders placed by operators through your authorized distributor will be priced by KraftHeinz to your authorized distributor at a maximum of the rebate type for the product(s) found in the pricing table (showing prices, allowance and contract volume).

The prices do not include any distributor mark-up or distributor surcharges. Distributor mark-ups and other distributor charges are to be negotiated solely between the distributor and operator.

This letter deals with pricing, compliance and confidentiality matters only and is not to be construed as a guarantee of product availability or supply.

Sincerely,

Cindy Schmidt

KraftHeinz Representative

List of Authorized Operators

Operator Number	Operator Name	Address
0100029667	KRISPY KRUNCHY CHICKEN	1615 HARRIS ST ALEXANDRIA LA 71301-6218

List of Authorized Distributors

Customer Number	Company Name	Address
0200046846	CAPITOL DISTRIBUTING 1	3500 E COMMERCIAL CT MERIDIAN ID 83642-6006
0200018845	DICARLO DIST INC	1630 N OCEAN AVE HOLTSVILLE NY 11742-1838
0200834147	FOODS GALORE INC	9246 COMMERCE HWY PENNSAUKEN NJ 08110-1202
0100037990	LIPARI	14253 FRAZHO RD WARREN MI 48089-1476
0200029423	MCDONALD WHOLESALE COMPANY	2350 W BROADWAY EUGENE OR 97402-2704
0200614927	MTC DISTRIBUTING 1	4900 STODDARD RD MODESTO CA 95356-9389
0200063072	PINE STATE TRADING CO	8 ELLIS AVE AUGUSTA ME 04330-7199
0100037995	RENZI BROS INC	948 BRADLEY ST WATERTOWN NY 13601-1209
0200150094	SAINT JOE DIST 1	5808 CORPORATE DR SAINT JOSEPH MO 64507-7758
0200397548	SOTO PROVISION INC	949 S MERIDIAN AVE ALHAMBRA CA 91803-1214
0200018507	SYSCO ARIZONA	611 S 80TH AVE TOLLESON AZ 85353-4025
0200051837	SYSCO ARKANSAS	5700 W 65TH ST LITTLE ROCK AR 72209-3828
0200032250	SYSCO ATLANTA	2225 RIVERDALE RD COLLEGE PARK GA 30337-5111
0200013872	SYSCO BOSTON	99 SPRING ST PLYMPTON MA 02766-3401
0100045602	SYSCO BOSTON2	99 SPRING ST PLYMPTON MA 02367
0200757424	SYSCO CENTRAL ALABAMA	1000 SYSCO DR CALERA AL 35040-4992
0200034242	SYSCO CENTRAL FLORIDA	200 W STORY RD OCOEE FL 34761-3004
0200044899	SYSCO CENTRAL TEXAS	1260 SCHWAB RD NEW BRAUNFELS TX 78132
0200056560	SYSCO CINCINNATI	10510 EVENDALE DR CINCINNATI OH 45241-2516
0200008840	SYSCO COLUMBIA	131 SYSCO CT COLUMBIA SC 29209-5143

Customer Number	Company Name	Address
0200962839	SYSCO CONNECTICUT	100 INWOOD RD ROCKY HILL CT 06067-3434
0200035055	SYSCO DALLAS	800 TRINITY DR LEWISVILLE TX 75056
0100000654	SYSCO EAST TEXAS	4577 ESTES PKWY LONGVIEW TX 75603-0900
0200150279	SYSCO GULF COAST	2001 W MAGNOLIA AVE GENEVA AL 36340-1209
0200548849	SYSCO HAMPTON ROADS	7000 HARBOUR VIEW BLVD SUFFOLK VA 23435-2756
0200010707	SYSCO HOUSTON	10710 GREENS CROSSING BLVD HOUSTON TX 77038-2716
0200002048	SYSCO JACKSON	4400 MILWAUKEE ST JACKSON MS 39209-2636
0200010083	SYSCO JACKSONVILLE	1501 LEWIS INDUSTRIAL DR JACKSONVILLE FL 32254-1660
0100000314	SYSCO KNOXVILLE	900 TENNESSEE AVE KNOXVILLE TN 37921-2630
0200020016	SYSCO LOUISVILLE	7705 NATIONAL TPKE LOUISVILLE KY 40214-4803
0100045660	SYSCO LOUISVILLE2	7705 NATIONAL TURNPIKE LOUISVILLE KY 40214
0200051842	SYSCO MEMPHIS	4359 BF GOODRICH BLVD MEMPHIS TN 38118-7306
0200080858	SYSCO METRO NEW YORK LLC	20 THEODORE CONRAD DR JERSEY CITY NJ 07305-4614
0200025551	SYSCO NASHVILLE	1 HERMITAGE PLZ NASHVILLE TN 37209-1002
0200033791	SYSCO NEW ORLEANS	1451 RIVER OAKS RD W HARAHAN LA 70123-2176
0200055040	SYSCO OKLAHOMA	1350 W TECUMSEH RD NORMAN OK 73069-8200
0200396989	SYSCO RALEIGH	1032 BAUGH RD SELMA NC 27576-9105
0200029648	SYSCO SOUTH FLORIDA	12500 NW SYSCO WAY 112TH AVE MEDLEY FL 33178
0200205055	SYSCO ST LOUIS	3850 MUELLER RD SAINT CHARLES MO 63301-8042
0200310410	SYSCO VIRGINIA	5081 S VALLEY PIKE HARRISONBURG VA 22801-3932
0200055216	SYSCO WEST TEXAS	714 2ND PL LUBBOCK TX 79401-1502

PRG-1048535 - Fixed Price

SCC#	Product Description	H- DEVIATED DEL TRUCKLOAD-37 Pays To: Distributor
00130005305000	HNZ MILD MUSTARD SS500 .2OZ	$11.50 / CS
00130007145000	HEINZ COCKTAIL SAUCE RTCUP 100 1OZ	$13.00 / CS
00130007147000	HNZ TARTAR SAUCE RTCUP 100 .75OZ	$15.50 / CS
00130007148000	HEINZ RANCH DRESSING RTCUP 100 .75O	$15.50 / CS
00130009848000	HEINZ KETCHUP SINGLE SERVE 1000 9GM	$23.50 / CS
07160370694500	TPG DIJ HON MUST RTCUP100 1OZ	$20.95 / CS
07160378304600	TEXAS PETE HOT SAUCE SS1000 7GM	$43.00 / CS

PRG-1048535 - Rebate

SCC#	Product Description	H- REBATE Pays To: Operator
00130000072800	HNZ KET FS INV BOT (16) 14OZ	$3.00 / CS
00130000073100	HNZ YEL MUSTARD USD FS INV 16 13OZ	$3.00 / CS
00130000075400	HEINZ WHITE VINEGAR6 1GAL	$0.50 / CS
00130000075401	HEINZ DIST WHITE VINEGAR TL6 1GAL	$0.50 / CS
00130000075402	WALMT HNZ VIN GAL HUNGER STICKER	$0.50 / CS
00130000082700	HNZ APL CIDER VINGAR PLASTIC 41GAL	$0.50 / CS
00130002030400	HEINZ KETCHUP DIP & SQUEEZE300 27GM	$3.00 / CS
00130004124000	HNZ COND CRM OF MSHRM SOUP CAN 12 4	$2.00 / CS
00130004144000	HNZ COND TOMATO SOUP CAN 12 51OZ	$2.00 / CS
00130004174000	HNZ CRM OF CELERY SOUP CAN 12 49.25	$2.00 / CS
00130004344000	HNZ CRM OF CHICKEN SOUP CAN 12 49.2	$2.00 / CS
00130005137000	HEINZ KETCHUP 10 POUCH PAK 6 7.125L	$1.25 / CS
00130005149100	HNZ HUSA FS KET #10 JG KOSH6 114OZ	$1.00 / CS
00130005155000	HEINZ KETCHUP DISPENSER PACK 2 1.5G	$2.00 / CS
00130005167000	HEINZ MAYO DISPENSER PACK2 1.5GAL	$2.00 / CS
00130005181000	HNZ CHAM HOT SCE DSPK2 96OZ	$0.50 / CS
00130005266000	HEINZ 57 SAUCE FOOD SERVICE24 5OZ	$1.00 / CS
00130005284000	HEINZ SALSA ROUND CUP60 2OZ	$1.00 / CS
00130005293000	HNZ MARINARA SAUCE ROUND CUP 60 2OZ	$2.00 / CS
00130005305000	HNZ MILD MUSTARD SS500 .2OZ	$2.00 / CS
00130005307000	HNZ MILD MUSTARD SS1000 .2OZ	$4.00 / CS
00130005312000	HNZ HONEY MUSTARD SS 200 12GM	$2.00 / CS
00130005314000	HNZ MAYONNAISE SS500 12GM	$4.00 / CS
00130005318000	HNZ RELISH SS 200 9GM	$1.00 / CS
00130005322000	HNZ HORSERADISH SAUCE SS 200 12GM	$0.50 / CS
00130005324000	HNZ MILD TACO SAUCE SS 200 9GM	$2.00 / CS
00130005326000	HNZ ITALIAN DRESSING SS200 12GM	$2.00 / CS
00130005331000	HNZ RANCH DRESSING SS200 12GM	$2.00 / CS
00130005333000	HNZ STEAK SAUCE SS 200 12GM	$0.50 / CS
00130005335000	HNZ SYRUP RTCUP 100 1.5OZ	$2.00 / CS
00130005337000	HNZ HONEY SS 200 9GM	$2.00 / CS
00130005342900	HEINZ HONEY MUSTARD DRSG SS60 1.5OZ	$1.50 / CS
00130005343400	HNZ LIGHT ITALIAN DRSG SS60 1.5OZ	$2.00 / CS
00130005343500	HNZ LIGHT RANCH DRESSING SS60 1.5OZ	$2.00 / CS
00130005346000	HNZ CREAMY ITALIAN DRSG SS 100 1OZ	$2.00 / CS
00130005421000	HEINZ GRAPE JELLY RTCUP200 .5OZ	$1.00 / CS
00130005422000	HNZ STRAWBERRY JAM RTCUP 200 .5OZ	$1.00 / CS
00130005422300	HNZ SWT TANGY BALS VINGT SS 601.5OZ	$2.00 / CS
00130005433000	HNZ FAT FREE MAYONNAISE SS 200 12GM	$1.00 / CS
00130005439000	HNZ AST 5 JEL/JAM RTCUP 200 .5OZ	$1.00 / CS
00130005439200	HNZ AST REDUCED SUGAR RTCUP 200 .5O	$1.00 / CS
00130005443000	HNZ RANCH DRESSING RDCUP 60 2OZ	$1.00 / CS
00130005706000	BEL ORT PIZ SCE BASIL 10TIN 6 6LB11	$1.00 / CS
00130005724000	HEINZ TOMATO SAUCE FS 10TIN6 6LB 7O	$0.50 / CS
00130005731000	HEINZ TOMATO PASTE 10TIN 66LB 15OZ	$0.50 / CS

SCC#	Product Description	H- REBATE Pays To: Operator
00130006522000	HNZ HUSA FS MUST #10JG KOSH6104OZ	$0.75 / CS
00130007138000	HNZ S&S SAUCE DUNK CUP SS100 1OZ	$3.00 / CS
00130007141000	TABASCO PEPPER SAUCE SS 200 3GM	$2.00 / CS
00130007144000	HEINZ HONEY MUSTARD RTCUP100 1OZ	$4.00 / CS
00130007145000	HEINZ COCKTAIL SAUCE RTCUP 100 1OZ	$2.00 / CS
00130007146000	HEINZ BARBECUE SCE RTCUP SS100 1OZ	$3.00 / CS
00130007147000	HNZ TARTAR SAUCE RTCUP 100 .75OZ	$3.00 / CS
00130007148000	HEINZ RANCH DRESSING RTCUP 100 .75O	$3.00 / CS
00130007501000	HNZ ITALIAN DRESSING SS60 1.5OZ	$2.00 / CS
00130007502000	HNZ 1000 ISLAND DRSG SS60 1.5OZ	$2.00 / CS
00130007503000	HNZ FRENCH DRESSING SS60 1.5OZ	$2.00 / CS
00130007504000	HNZ BLUE CHEESE DRESSING SS60 1.5OZ	$2.00 / CS
00130009848000	HEINZ KETCHUP SINGLE SERVE 1000 9GM	$5.00 / CS
00130009868000	HNZ TACO SAUCE SS500 9GM	$2.00 / CS
00516000000300	L&P WOOZ SAUCE GLS UNWRAPPED 24 5FL	$1.00 / CS
00516000030100	L&P WOOZ SAUCE PLASTIC JUG 3 1GAL	$1.00 / CS
00784853047000	ALGRO TUSC TOM/HERB PASTA SCE6 6LB	$3.00 / CS
07160370001700	SDS PICANT SCE SS200 .5OZ	$2.00 / CS
07160370003600	SDS JALAPENO HOT SCE SS 500 9GM	$2.00 / CS
07160370005500	TPG FF RED FRNCH DRSG SS 100 1.5OZ	$2.00 / CS
07160373118000	REALEMON LEMON JUICE SS200 4GM	$1.00 / CS
07160377372500	EAST SN DUCK SCE SS500 9GM	$0.50 / CS
07160378304600	TEXAS PETE HOT SAUCE SS1000 7GM	$5.00 / CS

A. General Terms and Conditions

1. Contract prices are based on distributor full truckload purchases. All deviations will be calculated and paid based upon the Heinz published full truckload price. Full truckload is defined as the following:
    a. Delivered Core dry orders at least 42,000 pounds of order weight
    b. Delivered mixed orders at least 34,000 pounds of order weight (for orders shipped from a Heinz Portion Control Facility: Mason, Jacksonville and Chatsworth)
    c. Delivered orders of at least 28 pallets
    d. Pickup Core dry orders of at least a half truckload quantity (21,000 pounds)
    e. Pickup Frozen Soup orders at 10,000 or more pounds order weight
    f. Pickup orders from Mason, Jacksonville and Chatsworth facilities at 10,000 or more pounds order weight
2. Purchases in less than truckload quantities will incur additional charges (direct or redistribution). Heinz order minimum is 10,000 pounds. Smaller quantities are available through DOT Foods. DOT bracket up charges will apply and are the responsibility of the distributor to pay to DOT Foods. Any applicable operator rebates are not calculated using the DOT invoice price but instead the Heinz published truckload list price.
3. Pricing on a Forge contract is defined as the following:
    a. Invoice Truckload price is the price to the distributor (and does not include distributor's mark-up, freight or any other additional distribution costs) for full truckload purchases as defined in term 1 above. The distributor determines the actual selling price to the operator. Any purchases in less than truckload quantities will incur additional charges (direct of redistribution).
    b. Deviated pricing is defined as the full truckload price the operator/distributor will receive after a billback is submitted to Heinz. Deviated price billbacks are calculated by subtracting the deviated price from the full truckload price defined on the Heinz published price list.
4. Rebates are a specified dollar amount that must be claimed from Heinz regardless of the invoice price.
5. Heinz will allow distributor deviated rebates to be administered by distributor(s) only if authorized in writing by the operator. Operator rebates must be paid directly to the operator and will not be deviated through the distributor.
6. Any volume commitments identified in this agreement represent one of the considerations for the rebates offered. Future adjustments to the rebate amounts may be based on the actual volumes purchased.
7. The rebates identified are only available to the operators listed. Heinz reserves the right to deny payment of any claim for any purchases made by customers/operators who are not eligible for these rebates. These rebates are considered confidential information to be shared only with the parties listed in this agreement.
8. Acceptance of a rebate on any portion of this program from Heinz, in writing, by purchase of any of the products identified, or by submission of a claim, constitutes acceptance of that program in its entirety, and voids participation in any other Heinz program. Heinz reserves the right to terminate this offer within 90 days of the first date of the effective period if the operator has not purchased any of the products identified or at any time thereafter.
9. Acceptable proof of delivery (POD) must be submitted to Heinz prior to receipt of any rebate payment. The POD must include the name, full street address, and a unique member identification number (if available) for the operator. Heinz reserves the right to reject any claim where the POD does not meet Heinz's requirements. Heinz reserves the right to deny payment on any claims not received within 120 days after the date the products are delivered to the distributor.
10. All purchases made under this contract are also subject to Heinz' standard invoice terms and conditions of sale.
11. Heinz will not honor rebate claims for any product that is resold or delivered past its shelf life or expiration date.
12. Rebates are paid on full cases only. Partial cases are not eligible for rebates and will be disallowed.
13. Any growth, tradeshow, marketing or other similar lump sum payments are subject to additional terms and conditions provided on the applicable Forge contract.

applicable Forge contract.
14. No other Heinz programs apply at this operator and any prior programs or contracts are superseded and terminated.
15. Heinz reserves the right to modify or cancel this program at any time.

B. In addition to the General Terms and Conditions listed in section A above, Group Purchasing Organizations (GPO's) shall also be subject to the terms and conditions in this section B below:

1. The pricing and rebates are applicable only to the following Heinz business segments for Group Purchasing Organization (GPO) programs and purchases**:

Healthcare	Travel & Lodging	Education	Recreation	Corrections
Hospitals	Hotels	K-12	Sports Venues	Federal
Long Term Care	Resorts	Colleges & Universities	Ski Areas	State
Senior Living	Airports	Pre-School	Golf Courses	Local
	Rest Areas		Race Tracks	
			Cruise Lines	
			Camps	
			Churches	

**Segments not specifically included above are excluded

2. GPO will provide Heinz the list of GPO members who shall have the right to purchase products under this agreement. The membership list must be in Excel format and must include the name, full street address, and a unique member identification number (if available).
3. On a monthly basis, Customer must provide written notice of any proposed changes to the membership list. Heinz shall have the right to approve or deny additions or changes to the membership list on a specific program basis, in its sole discretion. The changes must be provided to Heinz in Excel format and must include the name and full street address and a unique member identification number, if available.
4. For product categories with dual specification or greater, GPO shall meet with Heinz, upon Heinz's reasonable request, to set and review compliance process and goals.
5. Customer shall grant Heinz access to the managed order guide so that Heinz can verify that products are listed in accordance with the current agreement.
6. Heinz reserves the right, in its sole discretion, to approve any sub-GPO that any GPO customer wishes to add to its program. Approval will be based on sub GPO's written agreement to comply with all above requirements and such other requirements as Heinz may in its discretion require. A sub-GPO is defined as a Group Purchasing Organization that is a member of the Group Purchasing Organization covered under this agreement.

C. In addition to the General Terms and Conditions listed in section A above, the following additional terms and conditions shall apply to any Heinz Formal Bid or Blanket Bid as noted below:

1. Formal Bid Program
   a. Heinz Formal Bid Program pricing or rebates cannot be used in conjunction with the Heinz Blanket Bid Program. Heinz reserves the right to disallow duplicate claims made under other bid programs in the event a customer submits claims under two or more different bid programs.
   b. Pricing and rebates under this program are only available to "self-operated" operator accounts (defined as operator accounts that operate their own foodservice operations). Foodservice operations managed by a chain-affiliated management company are not eligible.
2. Blanket Bid Program
   a. The Heinz/PPI Blanket Bid program excludes the following operator accounts:
      i. Military Accounts
      ii. Healthcare
      iii. Group Purchasing Organizations
      iv. Commercial Restaurants
   b. The Heinz Frozen Soup Blanket bid is only intended for the following operator accounts:
      i. Private, public and parochial schools (K-12)

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